

Agriculture Insurance Company Of India ... vs Branch Manager Punjab National Bank on 17 July, 2026

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CGHC010208752026

2026:CGHC:30

HIGH COURT OF CHHATTISGARH AT BILASPUR

WP227 No. 845 of 2026

Agriculture Insurance Company Of India Ltd. Through Regional Manager,
Address- Regional Office Lic Investment Building, Phase-2, Second Floor
Pandri, Raipur (C.G.) Alternate Address- Office Block- 1, Fifth Floor
And C, East Kidwai Nagar, New Delhi, 110023

versus

1 - Branch Manager Punjab National Bank, Branch- Bhandarpur, Address-
Bhandarpur, Tehsil Khairagarh, District- Rajnandgaon (C.G.)- 491414

2 - Lakhan Mandavi S/o Bhavati Mandavi Aged About 60 Years R/o Village
Jagannathpur/karela, Tehsil- Khairagarh, District Rajnandgaon (C.G.)-
491445

--- Respo

Agriculture Insurance Company Of India Ltd. Through Regional Manager, Address Regional Office
L I C Investment Building Phase - 2, Second Floor, Pandari, Raipur (C.G.) Alternate Address- Office
Block -1 Fifth Floor, Plate B And C, East Kidwai Nagar New Delhi 110023

--- Petitioner VED PRAKASH DEWANGAN Versus PRAKASH 1 - Branch Manager Punjab National
Bank Branch Bhandarpur, Address Bhandarpur, Tehsil Khairagarh District- K.C.G. (C.G.) - 491414
Date:

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2 - Dinesh Kumar Verma S/o Jaganath Verma Aged About 45 Years R/o Karela, Post Dhara Tehsil
Khairagarh, District- K.C.G. (C.G.) 491445

--- Respondents Agriculture Insurance Company Of India Ltd. Through Regional Manager, Address Regional Office L I C Investment Building Phase - 2, Second Floor, Pandari, Raipur (C.G.) Alternate Address- Office Block -1 Fifth Floor, Plate B And C, East Kidwai Nagar New Delhi 110023

--- Petitioner Versus 1 - Branch Manager Punjab National Bank Branch Bhandarpur, Address Bhandarpur, Tehsil Khairagarh District- K.C.G. (C.G.) - 491414 2 - Ramchand Janghel S/o Tarasram Janghel Aged About 65 Years R/o Village Jagannathpur/ Karela, Tehsil Khairagarh District- K.C.G. (C.G.) 491445

--- Respondents Agriculture Insurance Company Of India Ltd. Through Regional Manager, Address Regional Office L I C Investment Building, Phase-2, Second Floor, Pandri, Raipur Chhattisgarh Alternate Address - Office Block - 1, Fifth Floor, Plate B And C, East Kidwai Nagar, New Delhi 110023

--- Petitioner Versus 1 - Branch Manager Punjab National Bank Branch Bhandarpur, Address Bhandarpur, Tehsil Khairagarh District Khairagarh Chhuikhadan Gandai Chhattisgarh 491414 2 - Dujram Verma S/o Dhannalal Verma Aged About 56 Years R/o Village Sirshahi, Tehsil Gataparkala, District Khairagarh Chhuikhadan Gandai Chhattisgarh 491444

--- Respondents Agriculture Insurance Company Of India Ltd. Through Regional Manager, Address- Regional Office L I C Investment Building , Phase-2, Second Floor, Pandri, Raipur (C.G.) Alternate Address- Office Block-1, Fifth Floor. Plate B And C, East Kidwai Nagar, New Delhi, 110023

--- Petitioner Versus 1 - Branch Manager Panjab National Bank, Branch-Bhandarpur, Address- Bhandarpur, Tehsil Khairagarh, District- District- K.C.G. (C.G.) 491414 2 - Dileep Kumar Janghel S/o- Rajendra Janghel, Aged About 40 Years R/o- Village Karela, Tehsil- Khairagarh, District- K C G (C.G.) 491445

--- Respondents Agriculture Insurance Company Of India Ltd. Through Regional Manager, Address Regional Office L I C Investment Building, Phase-2, Second Floor, Pandri, Raipur Chhattisgarh Alternate Address - Office Block - 1, Fifth Floor, Plate B And C, East Kidwai Nagar, New Delhi 110023

---Petitioner Versus 1 - Branch Manager, Punjab National Bank Branch Bhandarpur, Address Bhandarpur, Tehsil Khairagarh District Khairagarh Chhuikhadan Gandai Chhattisgarh 491414 2 - Rukhmani Janghel D/o Ramchand Janghel Aged About 59 Years R/o Village Jagannathpur/ Karela, Tehsil - Khairagarh, District Khairagarh- Chhuikhadan-Gandai Chhattisgarh 491445

--- Respondents Agriculture Insurance Company Of India Ltd. Through Regional Manager, Address Regional Office L I C Investment Building Phase - 2, Second Floor, Pandari, Raipur (C.G.) Alternate Address- Office Block -1 Fifth Floor, Plate B And C, East Kidwai Nagar New Delhi 110023

---Petitioner Versus 1 - Branch Manager, Panjab National Bank Branch Bhandarpur, Address Bhandarpur, Tehsil Khairagarh District- K.C.G. (C.G.) - 491414 2 - Bhukhanlal Kosre S/o Garibdas

Kosre Aged About 43 Years R/o Village Jagannathpur/ Karela, Tehsil Khairagarh District- K.C.G. (C.G.) 491445

--- Respondents Agriculture Insurance Company Of India Ltd. Through Regional Manager, Address - Regional Office Lic Investment Building, Phase- 2, Second Floor, Pandri, Raipur (C.G.) Alternate Address - Office Block - 1, Fifth Floor, Plate B And C, East Kidwai Nagar, New Delhi, 110023

---Petitioner Versus 1 - Branch Manager Punjab National Bank Branch Bhandarpur, Address Bhandarpur, Tehsil Khairagarh, District K C G (C.G.)- 491414 2 - Ghanaram Sahu, S/o Narottam Sahu, Aged About 56 Years R/o Village- Parsahi, Tehsil- Khairagarh, District K C G (C.G.)-491881

--- Respondents Agriculture Insurance Company Of India Ltd. Through Regional Manager, Address- Regional Office L I C Investment Building Phase -2 Second Floor Pandri Raipur, (C.G.) Alternate Address- Office Block - 1 Fifth Floor Plate B And C, East Kidwai Nagar, New Delhi, 110023

---Petitioner Versus 1 - Branch Manager Punjab National Bank Branch - Bhandarpur, Address- Bhandarpur, Tehsil- Khairagarh District- Khairagarh - Chhuikhadan-Gandai (C.G.) 491414 2 - Santuram Verma S/o Dasrathram Verma Aged About 41 Years R/o Village- Karela Tehsil- Khairagarh District- Khairagarh-Chhuikhadan-Gandai (C.G.) 491445

--- Respondents Agriculture Insurance Company Of India Ltd. Through Regional Manager, Address- Regional Office L I C Investment Building , Phase-2, Second Floor, Pandri, Raipur (C.G.) Alternate Address- Office Block-1, Fifth Floor. Plate B And C, East Kidwai Nagar, New Delhi, 110023

---Petitioner Versus 1 - Branch Manager Panjab National Bank, Branch-Bhandarpur, Address- Bhandarpur, Tehsil Khairagarh, District- District- K.C.G. (C.G.) 491414 2 - Jitendra Kumar Janghel, S/o- Krishna Kumar Janghel, Aged About 35 Years R/o- Village Jagannathpur/ Karela, Tehsil- Khairagarh, District- K.C.G. (C.G.) 491445

--- Respondents Agriculture Insurance Company Of India Ltd. Through Regional Office L I C Investment Building Phase -2, Second Floor, Pandri, Raipur C.G. Alternate Address Office Block 1 Fifth Floor, Plate B And C East Kidwai Nagar New Delhi 110023.

---Petitioner Versus 1 - Branch Manager Punjab National Bank Branch Bhandarpur Address Bhandarpur, Tehsil Khairagarh, District Khairagarh Chhuikhadan Gandai C.G. 491414.

2 - Babulal Lahre S/o Anupdas Lahre Aged About 62 Years R/o Village Daihan Tehsil Khairagarh District Khairagarh Chhuikhadan Gandai C.G.

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---Petitioner Versus 1 - Branch Manager Punjab National Bank, Branch Bhandarpur, Address Bhandarpur, Tehsil Khairagarh, District K.C.G. Chhattisgarh 491414 2 - Parmanand Gond S/o Jaitram Gond Aged About 51 Years R/o Village Baigatola, Tehsil - Khairagarh, District K.C.G. Chhattisgarh 491881

--- Respondents Agriculture Insurance Company Of India Ltd. Through Regional Manager, Address- Regional Office L I C Investment Building , Phase-2, Second Floor, Pandri, Raipur (C.G.) Alternate Address- Office Block-1, Fifth Floor. Plate B And C, East Kidwai Nagar, New Delhi, 110023

---Petitioner Versus 1 - Branch Manager Punjab National Bank Panjab National Bank, Branch- Bhandarpur, Address-Bhandarpur, Tehsil Khairagarh, District- District- K.C.G. (C.G.) 491414 2 - Lekhram Sahu, S/o- Jhumuklal Sahu, Aged About 48 Years R/o- Village Parasbod/parshahi Karela, Tehsil- Khairagarh, District- K.C.G. (C.G.) 491888

--- Respondents Agriculture Insurance Company Of India Ltd. Address- Regional Office L I C Investment Building Phase 2, Second Floor Pandri Raipur C.G. Alternate Address Office Block 1 Fifth Floor Plate B And C, East Kidwai Nagar, New Delhi 110023.

---Petitioner Versus 1 - Branch Manager Punjab National Bank Branch Bhandarpur Address Bhandarpur Tehsil Khairagarh, District Rajnandgaon C.G. 491414 2 - Gajadhar Verma S/o Shukhram Verma Aged About 56 Years R/o Village Bhandrapur Tehsil Khairagarh, District Rajnandgaon C.G. 491558.

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---Petitioner Versus 1 - Branch Manager Punjab National Bank, Branch Bhandarpur, Address Bhandarpur, Tehsil Khairagarh, District K C G (C.G.)- 491414 2 - Kaluram, S/o Bheekhrum, Aged About 57 Years R/o Village - Jagannathpur / Karela, Tehsil - Khairagarh, District K C G (C.G.)- 491445

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---Petitioner Versus 1 - Branch Manager Punjab National Bank Address Bhandarpur Tehsil Khandarpur District Rajnandgaon C.G. 491414. 2 - Lalit Kumar Verma S/o Jagnuram Verma Aged About 31 Years R/o Village Jagannathpur Karela Tehsil Khairagarh District Rajnandgaon C.G. 491445.

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---Petitioner Versus 1 - Branch Manager Punjab National Bank, Branch Bhandarpur, Address Bhandarpur, Tehsil Khairagarh, District Khairagarh Chhuikhadan Gandai (C.G.)- 491414 2 - Janak Ram Verma, S/o Ramdyaal Verma, Aged About 65 Years R/o Village- Jagannathpur /karela, Tehsil - Khairagarh, District Khairagarh Chhuikhadan Gandai (C.G.) -491445

--- Respondents Agriculture Insurance Company Of India Ltd. Through Regional Manager Address Regional Office L I C. Investment Building Phase, 2, Second Floor, Pandri, Raipur C.G. Alternate Address Office Block 1, Fifth Floor Palate B And C, East Kidwai Nagar New Delhi, 110023.

---Petitioner Versus 1 - Branch Manager Punjab National Bank Branch Bhandarpur Address Bhandarpur Tehsil Khairagarh, District Khairagarh Chhuikhadan Gandai C.G. 491414.

2 - Thansingh Verma S/o Govind Verma Aged About 46 Years R/o Village Jagannathpur Karela Tehsil Khairagarh, District Khairagarh Chhuikhadan Gandai C.G. 491445.

--- Respondents Agriculture Insurance Company Of India Ltd. Through Regional Manager, Address Regional Office L I C Investment Building Phase - 2, Second Floor, Pandari, Raipur (C.G.) Alternate Address- Office Block -1 Fifth Floor, Plate B And C, East Kidwai Nagar New Delhi 110023

---Petitioner Versus 1 - Branch Manager, Punjab National Bank, Branch Bhandarpur, Address Bhandarpur, Tehsil Khairagarh District- Rajnandgaon (C.G.) Now (K. C. G.) 491414 2 - Doman Singh Verma S/o Jagnuram Verma Aged About 41 Years R/o Village Jagannathpur/ Karela, Tehsil Khairagarh District- Rajnandgaon (C.G.) Now K. C. G. -491445

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---Petitioner Versus 1 - Branch Manager Panjab National Bank, Branch-Bhandarpur, Address- Bhandarpur, Tehsil Khairagarh, District- K.C.G. (C.G.) 491414 2 - Mahendra Kumar Verma, S/o- Pardeshi Verma, Aged About 57 Years R/o- Village Banboda, Bhandarpur, Tehsil Khairagarh, District- K.C.G. (C.G.) 491558

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---Petitioner Versus 1 - Branch Manager Punjab National Bank Branch Bhandarpur, Address Bhandarpur, Tehsil Khairagarh, District Rajnandgaon Now (K.C.G.) (C.G.)- 491414 2 - Shukhnandan Koshre S/o Babulal Koshre Aged About 32 Years R/o Village- Reevagahan/ Karela, Tehsil- Khairagarh, District Rajnandgaon Now (K.C.G.) (C.G.)- 491441

--- Respondents Agriculture Insurance Company Of India Ltd. Through Regional Manager, Address- Regional Office L.I.C. Investment Building, Phase- 2, Second Floor, Pandri, Raipur, C.G. Alternate

Address- Office Block-1, Fifth Floor, Plate B And C, East Kidwai Nagar, New Delhi, 110023.

---Petitioner Versus 1 - Branch Manager Punjab National Bank Branch- Bhandarpur, Address- Bhandarpur, Tehsil Khairagarh, District- Rajnandgaon Now (K.C.G.), C.G.- 491414.

2 - Ghanshyam Sahu S/o Ganeshram Sahu Aged About 43 Years R/o Village- Parsahi, Tehsil- Khairagarh, District- Rajnandgaon Now (K.C.G.), C.G. - 491888

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---Petitioner Versus 1 - Branch Manager Punjab National Bank Branch Bhandarpur, Address Bhandarpur, Tehsil Khairagarh, District Khairagarh Chhuikhadan Gandai (C.G.)- 491414 2 - Rajkapoor Mochi, S/o Gendalal Mochi, Aged About 63 Years R/o Village

- Bhandarpur, Tehsil - Khairagarh, District Khairagarh Chhuikhadan Gandai (C.G.) -491558

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---Petitioner Versus 1 - Branch Manager Punjab National Bank , Branch Bhandarpur, Address Bhandarpur, Tehsil Khairagarh District- (K.C.G.) (C.G.) - 491414 2 - Harishchandra Verma S/o Mangalram Verma Aged About 37 Years R/o Village Karela, Tehsil Khairagarh District- (K.C.G.) (C.G.) 491445

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---Petitioner(Versus 1 - Branch Manager, Punjab National Bank Branch Bhandarpur, Address Bhandarpur, Tehsil Khairagarh District Khairagarh Chhuikhadan Gandai Chhattisgarh 491414 2 - Prakash Gaund S/o Preetram Mandavi Aged About 48 Years R/o Village Karela, Tehsil - Khairagarh,

District Khairagarh Chhuikhadan Gandai Chhattisgarh 491445

--- Respondents Agriculture Insurance Company Of India Ltd Through Regional Manager, Address- Regional Office L.I.C. Investment Building, Phase-2, Second Floor, Pandri, Raipur, C.G. Alternate Address- Office Block-1, Fifth Floor, Plate B And C, East Kidwai Nagar, New Delhi, 110023.

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2 - Dhansai Gaud S/o Dasru Aged About 71 Years R/o Village- Bhandarpur, Tehsil Khairagarh, District- Khairagarh-Chhuikhadan-Gandai, C.G.- 491558..

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---Petitioner Versus 1 - Branch Manager Punjab National Bank, Branch Bhandrapur, Address Bhandarpur, Tehsil Khairagarh District -K C G (C.G.) -491414 2 - Kubhlal Sinha, S/o Punuram

Sinha, Aged About 55 Years R/o Village - Bhandrapur, Tehsil -Khairagarh, District K C G (C.G.)
-491558

--- Respondents (Cause title taken from Case Information System) For Petitioner : Mr. Shobhit Mishra, Advocate For Respondent No.1 : Mr. Sharad Mishra, Advocate Hon'ble Shri Ravindra Kumar Agrawal, Judge Order on Board 17/07/2026

1. As all these writ petitions arise from a common order passed by the learned National Consumer Disputes Redressal Commission, New Delhi, and involve common questions of fact and law, they were heard together and are being disposed of by this common order. For the sake of convenience, Writ Petition (227) No. 845 of 2026 is treated as the lead case, and the facts are being referred to therefrom.

2. The complainant's case before the District Consumer Disputes Redressal Commission, Rajnandgaon, was that they were eligible loanee farmers under the Pradhan Mantri Fasal Bima Yojana (hereinafter referred to as "PMFBY") for Kharif-2019 and owned agricultural land of their respective Khasra Numbers. It was averred in the complaint that the crop insurance premium was deducted by Respondent No.1/Bank from their savings account and remitted to Respondent No.2/Insurance Company. Due to deficient rainfall and natural calamities during the crop season, their crop suffered substantial damage. On the basis of the Report prepared by the Deputy Director of Agriculture, District Rajnandgaon, the Insurance Company paid crop insurance compensation to other similarly situated farmers at the rate of Rs. 28,073/- per hectare, but no compensation was paid to the respective complainants despite the deduction of the premium from their accounts. It was further pleaded in the complaint that, pursuant to a complaint submitted before the Collector, an inquiry was conducted wherein it was found that although the crop insurance premium had been deducted from the complainant's account and remitted to the Insurance Company, their particulars had not been uploaded on the designated portal by the respondent/Bank, resulting in denial of the insurance claim. On these allegations, the complainant asserted that both the Bank and the Insurance Company were guilty of deficiency in service and were jointly and severally liable to compensate him. Accordingly, he claimed crop insurance compensation, compensation towards physical, mental and financial hardship, interest at the rate of 18% per annum, litigation costs and other appropriate reliefs.

3. The Opposite Party No.1/Bank, in its written statement, submitted that it functions strictly in accordance with the directions and guidelines issued by the Central Government under the PMFBY. In respect of complainants who availed Kisan Credit Card (KCC) loans, the crop insurance premium from their accounts was duly deducted from their accounts and remitted to Opposite Party No.2/Insurance Company within the prescribed period. Despite receipt of the premium, the Insurance Company neither accepted the details uploaded on the portal nor made any effort to have the information re-entered. It was further pleaded that the Insurance Company retained the premium amount without returning the same to the Bank, even though the names of the insured farmers were not registered on the portal. The Bank asserted that it had repeatedly requested the Insurance Company not to reject the premium, but such requests were not acceded to. Thus, the complainants were deprived of crop insurance solely due to the default of the Insurance Company,

and the Bank was not liable to pay any compensation. On these grounds, dismissal of the complaint against Opposite Party No.1 was prayed for.

4. The opposite Party No.2/Insurance Company, in its written statement, submitted that under the PMFBY, the lending bank deducts the crop insurance premium from the accounts of eligible farmers, remits the consolidated premium to the Insurance Company, and is exclusively responsible for uploading the particulars of individual farmers on the National Crop Insurance Portal. For Kharif-2019, Village Karela, Tahsil Khairagarh, District Rajnandgaon, the threshold yield was 1,805 kg per hectare; the actual yield was 407.148 kg per hectare, resulting in a yield loss of 1,397.852 kg per hectare, i.e., 77.44%, thereby making insured farmers eligible for compensation. However, the Bank failed to insure the complainant's crop by not uploading their particulars on the insurance portal. It was specifically pleaded that the Insurance Company neither deducts the premium directly from the farmer's account nor uploads the farmer's data on the portal, those functions being exclusively within the domain of the Bank. Since the complainant was never enrolled under the Scheme due to the Bank's omission, no insurance cover came into existence and, consequently, the complainant was not entitled to receive any crop insurance claim from the Insurance Company. Accordingly, dismissal of the complaint against Opposite Party No.2 was sought.

5. Upon appreciation of the pleadings, affidavits and documentary evidence adduced by the parties, the learned District Consumer Disputes Redressal Commission held that the complainants had established that the crop insurance premium had been duly deducted from their respective bank accounts and remitted by Opposite Party No.1/Bank. The Commission considered the PMFBY Guidelines, Government notifications, bank records, e-mail correspondence and other relevant documents and after referring to Clauses 17.11 and 17.12 of the PMFBY Operational Guidelines, the State Government Notification dated 24.05.2017 and the decisions of the National Consumer Commission in *The Manager, Andhra Pragati Grameena Bank v. Sigam Shiva Shankar Reddy and Others* (Revision Petition No. 2673 of 2013, decided on 30.10.2015) and the Chhattisgarh State Consumer Commission in *Chhattisgarh Rajya Gramin Bank v. Smt. Radhiya Bai and Others* (FA No. 678 of 2019, decided on 10.01.2020), the District Commission decided that the statutory obligation to upload the particulars of eligible farmers on the National Crop Insurance Portal rests exclusively upon the concerned Bank. It rejected the Bank's defence that the omission occurred due to Aadhaar mismatch or technical errors, observing that the Kisan Credit Card accounts had themselves been opened on the basis of the same Aadhaar particulars and, therefore, such explanation was untenable. Holding that the complainants were deprived of crop insurance benefits solely due to the negligence of the Bank in failing to upload their particulars on the portal, the District Commission exonerated the O.P. No. 2/Insurance Company from liability and partly allowed the complaints by directing O.P. No.1/Bank to pay the crop insurance compensation, compensation for mental agony, interest from the date of filing of the complaints and litigation costs to the respective complainants.

6. The O.P. No. 1/Bank challenged the order dated 22.01.2024 passed by the learned District Consumer Disputes Redressal Commission, Rajnandgaon, by their appeals before the Chhattisgarh State Consumer Disputes Redressal Commission, Raipur. The State Commission, after hearing the parties, partly allowed the appeals preferred by the O.P. No. 1/Bank and modified the order of the District Commission. The State Commission held that it was undisputed that the O.P. No. 1/Bank

had deducted the crop insurance premium from the complainant's account and remitted the same to the Insurance Company, but the complainant's proposal could not be processed due to non-entry of the requisite particulars on the PMFBY portal. The Commission affirmed the finding that the O.P. No. 1/Bank was negligent in failing to upload the correct particulars of the complainant despite repeated extensions granted by the Central Government for portal entry, thereby committing a deficiency in service. However, the Commission further held that, in view of Condition No. 27 of the State Government Notification dated 08.07.2019 and the communication of the Ministry of Agriculture and Farmers Welfare dated 08.11.2019, the O.P. No. 2/Insurance Company was also under an obligation to finalise the applications or refund the premium within the stipulated period. Since the O.P. No. 2/Insurance Company neither approved the complainant's application nor refunded the premium within the prescribed time and retained the premium until 28.05.2020, it was also guilty of deficiency in service. Consequently, distinguishing the precedents relied upon by the O.P. No. 2/Insurance Company, the State Commission held that both the Bank and the Insurance Company were jointly and severally liable to compensate the complainant and accordingly modified the order of the District Commission by directing both respondents to pay the awarded compensation jointly and severally, while permitting the Bank to remit the premium afresh to the Insurance Company or recover the refunded premium from the complainant's account, if already credited.

7. The O.P. No. 2/Insurance Company further challenged the order dated 30.10.2024 passed by the State Commission by filing Second Appeals before the learned National Consumer Disputes Redressal Commission, New Delhi. The learned National Commission dismissed the second appeals preferred by the O.P. No. 2/Insurance Company vide order dated 01.10.2025 and affirmed the order of the Chhattisgarh State Consumer Disputes Redressal Commission. The National Commission observed that the O.P. No. 2/Insurance Company had confined its challenge to the issue of inter se liability between the O.P. No. 1/Bank and the O.P. No. 2/Insurance Company and did not dispute the entitlement of the complainant/farmers to compensation under the PMFBY. It has been held that the contention that the complainants were not consumers vis-à-vis the O.P. No. 2/Insurance Company and that there was no privity of contract between them was of no consequence in the facts of the case, as the PMFBY is a multi-agency welfare scheme wherein the O.P. No. 1/Bank and the O.P. No. 2/Insurance Company perform interdependent statutory functions. The National Commission found that while the O.P. No. 1/Bank was negligent in failing to upload the complainants' particulars on the portal within the stipulated period, the O.P. No. 2/Insurance Company was equally at fault in not refunding the premium within three weeks despite the Bank's failure to furnish the requisite details and in retaining the premium for nearly ten months. Holding that the Scheme envisages coordinated functioning of all implementing agencies and that both the O.P. No. 1/Bank and the O.P. No. 2/Insurance Company had contributed to the complainants being deprived of the benefits of the Scheme, the National Commission concluded that the State Commission had passed a well-reasoned order and, finding no ground for interference, upheld the finding of joint and several liability and dismissed all the second appeals. Hence, these petitions.

8. Learned counsel appearing for the petitioners/Insurance Company would submit that the petitioner, Agricultural Insurance Company of India Limited (AIC), is a Government of India undertaking incorporated under the Companies Act, 1956, engaged in implementing crop insurance

schemes, including the PMFBY. Respondent No.1 is Punjab National Bank, Bhandarpur Branch, which functions as the nodal bank for enrollment of loanee farmers under the PMFBY, while Respondent No.2 is a farmer who had availed a Kisan Credit Card (KCC) loan from Respondent No. 1/Bank. Under the PMFBY Operational Guidelines, it is the exclusive statutory responsibility of the lending bank to enroll eligible loanee farmers by uploading their particulars, including land and crop details, on the National Crop Insurance Portal (NCIP), deduct the farmer's share of the premium and remit the consolidated premium to the insurer. The petitioner receives only the aggregate premium amount from the Bank without farmer-wise particulars, and they have no independent mechanism to verify whether the premium relating to a particular farmer has been remitted or whether the farmer has been uploaded on the NCIP. Consequently, unless the details of a farmer are uploaded by the Bank on the NCIP, no insurance contract comes into existence, and such a farmer cannot be treated as insured under the Scheme. Although Respondent No.2 had obtained a KCC loan and the Respondent No. 1/Bank deducted the insurance premium from their account for Kharif-2019, the Respondent No. 1/Bank failed to upload their particulars on the NCIP within the stipulated period. As a result, Respondent No.2/complainants in all the writ petitions were never enrolled under the PMFBY and were, therefore, not eligible to receive crop insurance benefits from the petitioner. Reliance is placed upon Clause 17.2 and Clause 35.5.2.7 of the PMFBY Operational Guidelines, which expressly provide that only those farmers whose data is uploaded on the NCIP are entitled to insurance coverage and that, where a farmer is deprived of insurance due to incorrect, partial or non-uploading of particulars, the concerned Bank alone is liable for the consequences and payment of the claim.

9. He would further argue that the Central Government had, on three occasions, reopened the NCIP portal and extended the last date for uploading farmers' data to enable Banks to rectify omissions. Despite these repeated opportunities, Respondent No.1/Bank failed to upload the particulars of Respondent No.2/complainants. After completion of reconciliation, the petitioner repeatedly requested the banks to furnish account details so that excess premium collections could be refunded, and several communications as well as meetings with the State Government and the State Level Bankers' Committee were held for this purpose. Owing to the non-cooperation of the banks, the refund process was delayed and, eventually, the excess premium pertaining to the Respondent No. 1/Bank was returned in accordance with the prescribed procedure. The Respondent No. 1/Bank failed to upload the complainant's particulars despite repeated extensions granted by the Central Government for data entry and, consequently, the entire liability for denial of insurance benefits squarely rests upon the Respondent No. 1/Bank. He would rely upon the communications issued by the Government of India dated 15.01.2021, the State Government order dated 14.06.2021 and the decision of the State Level Coordination Committee on Crop Insurance dated 24.06.2024.

10. It was further argued that the Consumer Commissions below committed an error in relying upon the State Government Notification dated 08.07.2019 and the letter of the Ministry of Agriculture dated 08.11.2019 for fastening joint and several liability upon the petitioner. According to the petitioner, the notification dated 08.07.2019 applies only to cases where discrepancies arise in applications already uploaded on the NCIP and cannot govern cases of "No Portal Entry", where the Respondent No. 1/Bank failed to upload the farmer's details altogether. The petitioner had duly approved all valid applications uploaded on the NCIP and disbursed insurance claims to all eligible

insured farmers for Kharif-2019. Had the respondent-Bank uploaded the complainant's particulars during the extended period made available by the Government, the complainant would have been covered under the Scheme and would have received the insurance claim. It was, therefore, argued that the findings of the State Commission and the National Commission fastening joint and several liability upon the petitioner are legally unsustainable, being contrary to the PMFBY Guidelines and the binding directions issued by the competent Central and State authorities. Therefore, the impugned orders be set aside, and the order passed by the District Consumer Commission exonerating the petitioner be restored.

11. Per contra, learned counsel appearing for Respondent No.1/Bank supported the impugned orders passed by the State Consumer Disputes Redressal Commission and the National Consumer Disputes Redressal Commission and submitted that no jurisdictional error or perversity is made out warranting interference under Article 227 of the Constitution of India. The Respondent No. 1/Bank had duly discharged its obligation by deducting the requisite crop insurance premium from the complainant's KCC account and remitting the same to the petitioner/Insurance Company within the prescribed time. Once the premium amount stood remitted, the Insurance Company was under a corresponding obligation to scrutinize the data received, reconcile the premium with the entries available on the NCIP, notify the Bank of any discrepancy and take appropriate steps either to approve the proposal or to return the premium within the time stipulated under the applicable Government notifications. It was argued that the petitioner failed to perform these obligations and instead retained the premium amount without either extending insurance coverage or refunding the amount to the Respondent No. 1/Bank, thereby depriving the complainant of the benefits of the Scheme. He further submitted that the petitioner cannot avoid its liability by relying upon the plea of "No Portal Entry", particularly when the premium amount had admittedly been received by it. It was argued that the State Government Notification dated 08.07.2019 specifically obligates the Insurance Company to communicate discrepancies to the concerned Bank and, in the event of non-resolution within the prescribed period, either refund the premium or bear the liability for payment of the claim. Despite repeated requests, the petitioner neither accepted the complainant's proposal nor refunded the premium amount, and, therefore, the Consumer Commissions rightly held that the Insurance Company was equally responsible for the loss suffered by the complainant. It is further submitted that the findings recorded by the District Commission, as modified by the State Commission and affirmed by the National Commission, are based upon an appreciation of the Scheme Guidelines and the relevant notifications and do not call for interference in the supervisory writ jurisdiction, and prayed that the writ petition be dismissed.

12. I have heard learned counsel for the parties and perused the documents annexed to the writ petition.

13. In the present case, the controversy does not relate to the entitlement of the complainant/farmers to receive compensation under the PMFBY, as the said issue has attained finality. The limited question raised by the petitioner/Insurance Company is with regard to the fastening of joint and several liability upon it along with the Respondent No. 1/Bank. The State Consumer Disputes Redressal Commission, upon a detailed appreciation of the PMFBY Operational Guidelines, the Government notifications and the material available on record, modified the order of

the District Commission by holding both the Respondent No. 1/Bank and the petitioner/Insurance Company liable, which has been affirmed by the National Consumer Disputes Redressal Commission. It is well settled that while exercising jurisdiction under Article 227, this Court does not sit as a Court of appeal over the findings recorded by the tribunals below and interference is warranted only where the findings suffer from patent perversity, manifest illegality or jurisdictional error. The parameters governing the exercise of supervisory jurisdiction stand authoritatively explained by the Supreme Court in *Shalini Shyam Shetty v. Rajendra Shankar Patil*, (2010) 8 SCC 329, wherein it has been held that Article 227 is intended to keep subordinate courts and tribunals within the bounds of their authority and cannot be invoked for re-appreciation of evidence and held that:-

"40. Same principles have been followed by this Court in *Mani Nariman Daruwala v. Phiroz N. Bhatena*¹, wherein it has been held that in exercise of its jurisdiction under Article 227, the High Court can set aside or reverse finding of an inferior court or tribunal only in a case where there is no evidence or where no reasonable person could possibly have come to the conclusion which the court or tribunal has come to. This Court made it clear that except to this "limited extent" the High Court has no jurisdiction to interfere with the findings of fact (see SCC pp. 149-50, para 18). In coming to the above finding, this Court relied on its previous decision rendered in *Chandavarkar Sita Ratna Rao v. Ashalata S. Guram*². The decision in *Chandavarkar* is based on the principle of the Constitution Bench 1 (1991) 3 SCC 141 2 (1986) 4 SCC 447 judgments in *Waryam Singh*³ and *Nagendra Nath*⁴ discussed above.

41. To the same effect is the judgment rendered in *Laxmikant Revchand Bhojwani v. Pratapsing Mohansingh Pardeshi*⁵. In SCC para 9 at pp. 579- 80 of the Report, this Court clearly reminded the High Court that under Article 227 that it cannot assume unlimited prerogative to correct all species of hardship or wrong decisions. Its exercise must be restricted to grave dereliction of duty and flagrant abuse of fundamental principles of law and justice.

42. Same views have been taken by this Court in respect of the ambit of High Court's power under Article 227 in *Lonand Grampanchayat v. Ramgiri Gosavi*⁶ (AIR pp. 222-34, para 5 of the Report) and the decision of this Court in *Jijabai Vithalrao Gajre v. Pathankhan*⁷. The Constitution Bench ratio in *Waryam Singh*⁸ about the scope of Article 227 was again followed in *Ahmedabad Mfg. & Calico Ptg. Co. Ltd. v. Ram Tahel Ramnand*⁹.

4310*. In a rather recent decision of the Supreme Court in *Surya Dev Rai v. Ram Chander Rai* 11 a two-Judge Bench of this Court discussed the principles of interference by the High Court under Article 227. Of course in *Surya Dev Rai* this Court held that a writ of certiorari is maintainable against the order of a civil court, subordinate to 3 *Waryam Singh v. Amarnath*, AIR 1954 SC 215 4 *Nagendra Nath Bora v. Commr. Of Hills Division and Appeals*, AIR 1958 SC 398 5 (1995)6 SCC 576 6 AIR 1968 SCC 222 7 (1970)2 SCC 717 8 *Waryam Singh v. Amarnath* AIR 1954 SC 215

9 (1972)1 SCC 898 10 *ED: Para 43 Corrected vide official Corrigendum No. F.3/ED.B.J./84/2010 dated 26-08-2010. 11 (2003)6 SCC 675 the High Court (SCC p. 688, para 19 of the Report). The correctness of that ratio was doubted by another Division Bench of this Court in Radhey Shyam v. Chhabi Nath¹² and a request to the Hon'ble Chief Justice for a reference to a larger Bench is pending. But insofar as the formulation of the principles on the scope of interference by the High Court under Article 227 is concerned, there is no divergence of views.

44. In para 38 sub-para (4) at SCC p. 695 of the Report, the following principles have been laid down in Surya Dev Rai and they are set out:

"38.(4) Supervisory jurisdiction under Article 227 of the is exercised for keeping the subordinate courts within the bounds of their jurisdiction. When a subordinate court has assumed a jurisdiction which it does not have or has failed to exercise a jurisdiction which it does have or the jurisdiction though available is being exercised by the court in a manner not permitted by law and failure of justice or grave injustice has occasioned thereby, the High Court may step in to exercise its supervisory jurisdiction."

45. Sub-paras (5), (7) and (8) of para 38 are also on the same lines and extracted below: (Surya Dev Rai case SCC pp. 695-96) "38.(5) Be it a writ of certiorari or the exercise of supervisory jurisdiction, none is available to correct mere errors of fact or of law unless the following requirements are satisfied: (I) the error is manifest and apparent on the face of the proceedings such as when it is based on clear ignorance or utter disregard of the provisions of 12 (2009)5 SCC 616 law, and (ii) a grave injustice or gross failure of justice has occasioned thereby.

(6) * * * (7) The power to issue a writ of certiorari and the supervisory jurisdiction are to be exercised sparingly and only in appropriate cases where the judicial conscience of the High Court dictates it to act lest a gross failure of justice or grave injustice should occasion. Care, caution and circumspection need to be exercised, when any of the abovesaid two jurisdictions is sought to be invoked during the pendency of any suit or proceedings in a subordinate court and the error though calling for correction is yet capable of being corrected at the conclusion of the proceedings in an appeal or revision preferred there against and entertaining a petition invoking certiorari or supervisory jurisdiction of the High Court would obstruct the smooth flow and/or early disposal of the suit or proceedings. The High Court may feel inclined to intervene where the error is such, as, if not corrected at that very moment, may become incapable of correction at a later stage and refusal to intervene would result in travesty of justice or where such refusal itself would result in prolonging of the lis.

(8) The High Court in exercise of certiorari or supervisory jurisdiction will not convert itself into a court of appeal and indulge in re appreciation or evaluation of evidence or correct errors in drawing inferences or correct errors of mere formal or technical character."

49. On an analysis of the aforesaid decisions of this Court, the following principles on the exercise of High Court's jurisdiction under Article 227 of the Constitution may be formulated:

(a) A petition under Article 226 of the Constitution is different from a petition under Article 227. The mode of exercise of power by the High Court under these two articles is also different.

(b) In any event, a petition under Article 227 cannot be called a writ petition. The history of the conferment of writ jurisdiction on High Courts is substantially different from the history of conferment of the power of superintendence on the High Courts under Article 227 and have been discussed above.

(c) High Courts cannot, at the drop of a hat, in exercise of its power of superintendence under Article 227 of the Constitution, interfere with the orders of tribunals or courts inferior to it. Nor can it, in exercise of this power, act as a court of appeal over the orders of the court or tribunal subordinate to it. In cases where an alternative statutory mode of redressal has been provided, that would also operate as a restraint on the exercise of this power by the High Court.

(d) The parameters of interference by High Courts in exercise of their power of superintendence have been repeatedly laid down by this Court. In this regard the High Court must be guided by the principles laid down by the Constitution Bench of this Court in *Waryam Singh* and the principles in *Waryam Singh* have been repeatedly followed by subsequent Constitution Benches and various other decisions of this Court.

(e) According to the ratio in *Waryam Singh*, followed in subsequent cases, the High Court in exercise of its jurisdiction of superintendence can interfere in order only to keep the tribunals and courts subordinate to it, "within the bounds of their authority".

(f) In order to ensure that law is followed by such tribunals and courts by exercising jurisdiction which is vested in them and by not declining to exercise the jurisdiction which is vested in them.

(g) Apart from the situations pointed in (e) and (f), High Court can interfere in exercise of its power of superintendence when there has been a patent perversity in the orders of the tribunals and courts subordinate to it or where there has been a gross and manifest failure of justice or the basic principles of natural justice have been flouted.

(h) In exercise of its power of superintendence High Court cannot interfere to correct mere errors of law or fact or just because another view than the one taken by the tribunals or courts subordinate to it, is a possible view. In other words the

jurisdiction has to be very sparingly exercised.

(i) The High Court's power of superintendence under Article 227 cannot be curtailed by any statute. It has been declared a part of the basic structure of the Constitution by the Constitution Bench of this Court in *L. Chandra Kumar v. Union of India*¹³ and therefore abridgment by a constitutional amendment is also very doubtful.

(j) It may be true that a statutory amendment of a rather cognate provision, like Section 115 of the Civil Procedure Code by the Civil Procedure Code (Amendment) Act, 1999 does not and cannot cut 13 (1997) 3 SCC 261: 1997 SCC (L&S) 577 down the ambit of High Court's power under Article 227. At the same time, it must be remembered that such statutory amendment does not correspondingly expand the High Court's jurisdiction of superintendence under Article 227.

(k) The power is discretionary and has to be exercised on equitable principle. In an appropriate case, the power can be exercised *suo motu*.

(l) On a proper appreciation of the wide and unfettered power of the High Court under Article 227, it transpires that the main object of this article is to keep strict administrative and judicial control by the High Court on the administration of justice within its territory.

(m) The object of superintendence, both administrative and judicial, is to maintain

efficiency, smooth and orderly functioning of the entire machinery of justice in such a way as it does not bring it into any disrepute. The power of interference under this article is to be kept to the minimum to ensure that the wheel of justice does not come to a halt and the fountain of justice remains pure and unpolluted in order to maintain public confidence in the functioning of the tribunals and courts subordinate to the High Court.

(n) This reserve and exceptional power of judicial intervention is not to be exercised just for grant of relief in individual cases but should be directed for promotion of public confidence in the administration of justice in the larger public interest whereas Article 226 is meant for protection of individual grievance. Therefore, the power under Article 227 may be unfettered but its exercise is subject to high degree of judicial discipline pointed out above.

(o) An improper and a frequent exercise of this power will be counterproductive and will divest this extraordinary power of its strength and vitality."

14. The same principle has been reiterated in the case of *Radhey Shyam v. Chhabi Nath*, (2015) 5 SCC 423, wherein the Supreme Court clarified that the power under Article 227 has not been expanded and is intended only to ensure that subordinate courts act within the limits of their jurisdiction and that interference is warranted only in cases of patent perversity, gross miscarriage of justice, or jurisdictional error.

15. From the record, it is not in dispute that the Respondent No. 1/Bank deducted the crop insurance premium from the accounts of the complainant/farmers and remitted the same to the petitioner/ Insurance Company. Equally undisputed is the fact that the particulars of the complainants were not uploaded on the NCIP, resulting in the denial of insurance coverage. The petitioner has attempted to contend that in the absence of portal entry, no contract of insurance ever came into existence and, therefore, the entire liability must rest upon the Respondent No. 1/Bank alone. However, the Consumer Commissions below have not ignored this omission on the part of the Respondent No. 1/Bank; rather, they have specifically recorded a finding that the Respondent No. 1/Bank was negligent in failing to upload the requisite particulars despite repeated extensions granted by the Central Government. At the same time, the State Commission has also found that the petitioner retained the premium amount without either extending the benefit of insurance or refunding the premium within the stipulated period prescribed under the applicable Government notifications. Thus, the finding of joint negligence is founded upon an appreciation of the obligations cast upon both implementing agencies under the Scheme and cannot be said to be either arbitrary or unsupported by the record.

16. This Court also finds no substance in the submission that the State Commission misapplied the Government Notification dated 08.07.2019 and the communication issued by the Ministry of Agriculture dated 08.11.2019. The State Commission has taken note of the fact that even after reconciliation of the premium, the petitioner neither refunded the premium amount within the prescribed time nor ensured that the discrepancy was resolved, despite retaining the premium for a considerable period. It is reflected from paragraph 8 of the order dated 01.10.2025 passed by the learned National Commission that the premium was deducted on 30.07.2019 and it was refunded on 28.05.2020, i.e. after about 10 months. It is relevant here to reproduce the paragraph 8 of the order passed by National Commission, which reads as under:-

"8. Opposite party No. 1 bank reiterating its submissions made before the District Commission has argued that due to Aadhar mismatch in the PMFBY portal the opposite party No. 2 insurance company rejected the proposal of insurance and returned the premium on 28.05.2020 after about one year from the date of deduction. Learned district commission has based the impugned order upon notification dated 24.05.2017 of CG Government, whereas the premium was deducted on 30.07.2019 and at that time notification No. 3700/ F-02/13/ PMFBY/ 2019/ 14-2 dated 08.07.2019 was already issued and effective. As per condition No. 27 of the notification of the year 2019 if the concerned bank fails to provide information/documents for rectification of defects, it was obligatory for the insurance company to refund the premium within three weeks, failing which the liability to pay compensation shall lie with the insurance company. In the instant case premium was deducted on 30.07.2019 and it was refunded on 28.05.2020 i.e. after about one year. The insurance company used the amount of premium during that period and refused the same after payment of compensation to other farmers. It is prayed that this appeal be allowed and the liability of payment of compensation be shifted upon the opposite party No. 2 insurance company."

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19. It is equally significant that the petitioner does not dispute that the complainants were otherwise eligible farmers and that similarly situated farmers received compensation under the PMFBY. The only reason for denial of the benefit to the complainants was the failure of the implementing agencies to complete the procedural requirements contemplated under the Scheme. The object of the PMFBY is to provide financial protection to farmers against crop loss arising from natural calamities. Being a beneficial social welfare scheme, its provisions cannot be construed in a manner that defeats its object or leaves an innocent farmer remediless because of lapses attributable to the implementing agencies. The Consumer Commissions have, therefore, rightly concentrated on ensuring that the beneficiaries of the Scheme are compensated and have left the question of inter se

adjustment of liability between the Respondent No. 1/Bank and the petitioner/Insurance Company to be worked out in accordance with law. Such an approach is consistent with the beneficial object of the Scheme and cannot be characterised as suffering from any jurisdictional infirmity.

20. Since the petitioner/Insurance Company is claiming the benefit of Clauses 17.2 and 35.5.13 of the Operational Guideline of PMFBY, it is necessary to take notice of the said provisions here, which are as under:-

"17.2 Consolidated declaration/ formats to be uploaded/entered electronically by Nodal Banks/Branches shall contain details about total insured area of the farmers, number of Loanee and Non-loanee farmers enrolled, Total Premium Amount remitted, premium remittance Unique Transaction Reference (UTR no.) and Date of remittance as per the format provided on the NCIP. Banks are required to upload the insured farmers' data mandatorily on the National Crop Insurance Portal. No other platform shall be used for uploading/submission of farmers' data. Those farmers whose data is uploaded on the NCIP shall only be eligible for Insurance coverage and accordingly the premium subsidy will also be released. In cases where farmers are denied crop insurance due to incorrect/partial/non-uploading of their details on portal, concerned Banks/ Intermediaries shall be responsible for payment of claims(if any).

35.5.13 Banks should ensure that farmers are not deprived of any benefit under the Scheme due to errors/omissions/commissions of the concerned branch/PACS, and in case of such errors, the concerned agencies shall have to make good of all such losses."

21. The submission of the petitioner/Insurance Company that Clause 17.2 and Clause 35.5.13 of the PMFBY Operational Guidelines completely exonerate the Insurance Company also does not merit acceptance in the facts of the present case. The Consumer Commissions have not ignored the statutory obligations of the Respondent No. 1/Bank under the Guidelines; rather, those obligations have been expressly recognised. However, the finding of joint liability has been recorded after considering the entire Scheme, the State Government notification and the conduct of the petitioner in retaining the premium without timely refund. Such a composite appreciation of the material cannot be substituted by this Court merely because the petitioner seeks a different interpretation of certain clauses of the Guidelines.

22. The submission advanced on behalf of the petitioner that, in view of Clause 35.5.13 of the PMFBY Operational Guidelines, it should be granted liberty to recover the amount of compensation from the Respondent No. 1/Bank, also does not merit acceptance. Clause 35.5.13 undoubtedly provides that where a farmer is deprived of insurance benefits on account of any error, omission or negligence attributable to the concerned implementing agency, such agency shall be responsible for making good the resultant loss. However, the said provision cannot be invoked by the petitioner to absolve itself of its own independent deficiency in service. The concurrent findings recorded by the State Commission and affirmed by the National Commission clearly establish that although the

petitioner had received the premium amount on 30.07.2019, it retained the same until 28.05.2020 without either extending insurance coverage to the complainants or refunding the premium within the prescribed period, despite being aware that the requisite particulars had not been uploaded on the portal. Such prolonged retention of the premium without extending any corresponding benefit constituted an independent deficiency in service on the part of the petitioner/ Insurance Company. Once the petitioner/Insurance Company itself is found to have contributed to the deprivation of the complainants' legitimate claim under the Scheme, it cannot seek the protection of Clause 35.5.13 to shift the entire liability upon the Respondent No. 1/Bank. The benefit of the said clause is available only to an agency that is free from blame and has suffered liability solely because of the default of another implementing agency; it cannot be extended to a party whose own negligence has concurrently caused the loss. Consequently, no liberty, as sought by the petitioner, deserves to be granted under Clause 35.5.13 of the Operational Guidelines of PMFBY.

23. In the present case, this Court finds that the State Commission and the National Commission have assigned cogent and plausible reasons for fastening joint and several liability upon the petitioner/Insurance Company and the Respondent No. 1/Bank after considering the relevant Scheme Guidelines, Government notifications and the evidence on record. The findings are neither shown to be perverse nor contrary to any statutory provision. Consequently, this Court is of the considered opinion that the impugned order passed by the learned National Consumer Disputes Redressal Commission affirming the order of the State Commission does not call for interference.

24. Accordingly, all the writ petitions, being devoid of merit, deserve to be and are hereby dismissed.

Sd/-

(Ravindra Kumar Agrawal) Judge ved